

26STCV03846 26STCV03846

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV03846

THE

PEOPLE OF THE STATE OF CALIFORNIA, ACTING BY AND THROUGH THE DEPARTMENT OF
TRANSPORTATION vs LOS CERRITOS WETLANDS, LLC, et al.

July 17,

2026

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NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR ORDER OF POSSESSION OF PARCEL 820341.

RULING:

The Court grants the Motion.

Plaintiff to give notice.

I.

BACKGROUND

On February 5, 2026, THE PEOPLE OF THE STATE OF CALIFORNIA (Plaintiff) filed a Complaint in Eminent Domain against LOS CERRITOS WETLANDS, LLC, et al. (Defendants), regarding a condemnation action to acquire property to upgrade the San Gabriel River Bridge's railing on State Route 1, up to a current standard of a concrete barrier and widened bridge width.

On June 18, 2026, Plaintiff filed the Request for Immediate Issuance of Order of Possession, attaching the previously filed Motion for Order of Possession of Parcel 820341, and Proposed Order (Exhibits A-B).

No Opposition has been filed. As stated in the Response filed on June 12, 2026, by Defendant LOS CERRITOS WETLANDS, LLC, it expressly "does not oppose...."

II.

LEGAL STANDARD

"California's 'quick-take' law provides only for an 'order of possession' upon deposit of estimated value. (§ 1255.410.) The date of possession may be postponed on hardship grounds (§ 1255.420), and it may be stayed while the condemnee litigates a potentially meritorious claim that the public agency does not have the right to take the property by eminent domain (§ 1255.430)." (Redevelopment Agency v. Gilmore (1985) 38 Cal.3d 790, 800. Accord, Mt. San Jacinto Community College Dist. v. Superior Court (2007) 40 Cal. 4th 648, 653.)

"Once a resolution of necessity is adopted, the resolution conclusively establishes the three criteria set forth under section 1240.030.... However, a person having an interest in property described in a resolution of necessity may still obtain judicial review of the validity of the resolution.... Review is ... available after the commencement of the eminent domain proceeding by

objection to the right to take.” (Santa Cruz County Redevelopment Agency v. Izant (1995) 37 Cal. App. 4th 141, 149.)

“[T]he trial court's review of the validity of the resolution of necessity under section 1245.255 is limited to a review of the agency's proceedings and therefore no new evidence may be admitted.” Ibid. at 150.

Under Code of Civil Procedure Section 1255.420, the court may stay the effective date for immediate possession, if it finds that defendants or occupants will suffer substantial hardship, and finds whether the condemning authority needs possession on that date, or whether it would suffer substantial hardship from an extension of that date. (Israni v. Superior Court (2001) 88 Cal.App. 4th 621, 640-641 (Israni).)

“The condemnor is required to establish the amount it believes to be just compensation for the property to be acquired and to make an offer in the full amount to the property owner. The offer cannot be less than the public entity's approved appraisal of the fair market value of the property.” (Precondemnation appraisal and offer, 7 Cal. Real Est. § 24:18 (4th ed.) [citing Gov. C. § 7267.2, subd. (a)(1)].)

An opinion outlines the requirements of statutory procedures for taking possession, as follows:

The Eminent Domain Law delineates two different types of proceedings for the governmental taking of property. The first is a standard condemnation proceeding in which the public agency does not take possession and title to condemned property until after a jury has awarded just compensation; thus, the “taking” and the “compensation” are contemporaneous and occur at the conclusion of court proceedings. Until then, the property owner bears the risk of loss to the property. (Redevelopment Agency v. Maxwell (1961) 193 Cal. App. 2d 414, 417–418 [14 Cal. Rptr. 170]; § 1268.030.) The second procedure, a quick-take proceeding, allows a public agency to take possession of a condemned property and the property owner to obtain the probable compensation for that property well in advance of the termination of court proceedings. Under section 1255.010, a public entity may accomplish an early taking of property by making a deposit of the “probable amount of compensation” at any time prior to entry of judgment. The amount of the deposit must be based on an appraisal of an expert qualified to express an opinion as to the value of the property and must be supported by a written statement of, or summary of the basis for, the appraisal. (§ 1255.010, subd. (b).) n2 After a deposit of probable compensation has been made, the court may

order that possession of the property be transferred to the condemner, after considering any opposition from the owner of the property and making certain findings regarding the public entity's legal right to take the property and the relative hardships that would befall the parties were title not transferred until after legal proceedings are completed. (§ 1255.410.) Once the deposit is made, the property owner can apply to withdraw "all or any portion of the amount deposited," and the court "shall order the amount requested in the application, or such portion of that amount as the applicant is entitled to receive, to be paid to the applicant." (§§ 1255.210, 1255.220.)

(Redevelopment Agency of San Diego v. Mesdaq (2007) 154 Cal. App. 4th 1111, 1120-1121.)

III.

ANALYSIS

Caltrans requests, by Motion, pre-judgment possession of the property in the process of being acquired by eminent domain.

The statutory scheme regarding prejudgment possession based upon urgent need may involve the nature of the public necessity to be served by the taking, whether it is reasonably related to the timing issue, and whether to stay due to the relative substantial hardship to parties caused by a quick taking, based upon all relevant facts. (Israni, supra, 88 Cal.App.4th at p. 638.)

Here, the Request for

Immediate Issuance of Order of Possession, attaching the Motion for Order of Possession of Parcel 820341, and Proposed Order (Exhibits A-B), show statutory compliance. (E.g., Code Civ. Proc., § 1255.410, subd. (d)(1).) Further, no Opposition shows substantial hardship or any other relevant facts.

IV.

CONCLUSION

The Court grants the Motion and will sign and file the Proposed Order separately lodged on May 13, 2026.